

authorise an investment on railway mortgages (*f*). And even a power to lend on "approved securities," though it will justify an investment on an ordinary mortgage, might not be held to extend to railway securities (*g*). And where trustees are empowered to lend "on such securities as they may approve," they are still bound to make inquiries, and exercise a sound discretion whether the securities are of sufficient value; and if in such a case * the trustees lend [*327] on any irregular securities, the *onus* lies on the trustees to show the sufficiency of the security (*a*).

55. **Loan upon a judgment.** — Trustees, with power to lend on *real securities*, could not lend on *personal* security with a *judgment* entered up against the borrower, [even when] by 1 & 2 Vict. c. 110, judgments were a charge on all the lands of the debtor, in the same manner as if he had, by writing under his hand, agreed to charge the same (*b*).

56. **Upon leaseholds for lives.** — Trustees having power to lend on *mortgage*, ought not to invest on security of leaseholds for *lives*, for there can be no security without resorting to a policy of insurance, and then, *quatenus* the policy, they rely upon the funds and credit of a private company (*c*). In the case of leaseholds, the lessee generally does not know the lessor's title; and where this is the case, it is an additional reason why trustees cannot accept the security. This restriction, however, does not apply to leases for lives in Ireland renewable for ever (where the power authorises an investment on real securities in Ireland); but the trustee must not advance more than one half the value of the property (*d*).

57. **Upon leaseholds for years.** — Where there is a power to lend on *mortgage* of real estates generally, there may be no

(*f*) *Mortimore v. Mortimore*, 4 De G. & J. 472.

(*g*) See *Re Simson's Trusts*, 1 J. & H. 89.

(*a*) *Stretton v. Ashmall*, 3 Drew. 9; and see *Zambaco v. Cassavetti*, 11 L. R. Eq. 439; [*New London and Brazilian Bank v. Brocklebank*, 21 Ch. D. 302.]

(*b*) *Johnston v. Lloyd*, 7 Ir. Eq. Rep. 252. Decided upon the corre-

sponding enactment in the Irish Act, 3 & 4 Vict. c. 105. [As to judgments not charging lands until they have been actually delivered in execution, see 27 & 28 Vict. c. 112.]

(*c*) See *Lander v. Weston*, 3 Drew. 389; *Fitzgerald v. Fitzgerald*, 6 Ir. Ch. Rep. 145.

(*d*) *Macleod v. Annesley*, 16 Beav. 600.